

25CHCV03317 25CHCV03317

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-09-23

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MOTION TO STRIKE

Motion filed on June 30, 2026.

MOVING PARTY: Defendant, Eduardo Romero.

RESPONDING PARTY: Plaintiff, Manuel Garcia.

NOTICE: OK.

RELIEF REQUESTED: Defendant seeks an order striking paragraphs 22, 26, and 32 of the Complaint, the prayer for exemplary and punitive damages against Defendant, and all other references and allegations concerning punitive damages.

RULING: Denied.

BACKGROUND

On September 16, 2025, Plaintiff Manuel Garcia ("Plaintiff") filed the Complaint asserting causes of action for assault and battery, intentional infliction of emotional distress, negligent hiring, negligent

supervision, premises liability, and negligence.

On June 30, 2026, Defendant Eduardo Romero ("Defendant") filed the present motion to strike, supported by the declaration of Christian L. Woods. Plaintiff filed an opposition on September 14, 2026. Defendant filed a reply on September 17, 2026 and does not oppose consideration of the opposition.

DISCUSSION

"Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof, but this time limitation shall not apply to motions specified in subdivision (e)." (Code Civ. Proc., § 435, subd. (b)(2).) "The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Id., § 436.) "In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff." (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.)

Civil Code section 3294 authorizes punitive damages in an action "for the breach of an obligation not arising from contract" upon a showing of malice, oppression, or fraud. (Civ. Code, § 3294, subd. (a).) As relevant here, malice means "conduct which is intended by the defendant to cause injury to the plaintiff" or despicable conduct carried on with a willful and conscious disregard of the rights or safety of others. (Id., subd. (c)(1).) Absent an intent to injure, malice based on willful and conscious disregard requires the additional component of despicable conduct. (College Hospital Inc. v. Superior Court (1994) 8 Cal.4th 704, 725.)

The mere allegation that an intentional tort was committed is insufficient to support punitive damages. (Grieves v. Superior Court (1984) 157 Cal.App.3d 159, 166.) The complaint must allege facts supporting the claimed malice. (Ibid.) The allegations are read in context with the other facts pleaded, and allegations concerning the defendant's state of mind may be sufficient when supported by the pleaded conduct. (Monge v. Superior Court (1986) 176 Cal.App.3d 503, 510.)

Here, Plaintiff alleges that when he refused Defendant's demand for a refund, Defendant "became so enraged" that he "wrongfully, unlawfully, intentionally, without warning, provocation or justification proceeded to assault and beat down MANUEL." (Compl. ¶ 18.) Plaintiff alleges Defendant, "a very heavy set individual," "suddenly and violently shoved Plaintiff against the truck interior corner," then "body locked MANUEL," whom Plaintiff describes as "thin built, 5'4" 104 lbs." (Compl. ¶ 18.) Plaintiff further alleges Defendant used his "massive frame" to "willfully [throw] Plaintiff down on to the floor of the truck" and then, "using his body and body weight, threw himself down (slamming and landing) on top of Plaintiff/VICTIM." (Compl. ¶ 18.) Plaintiff further alleges that Defendant, "in his anger and/or rage," "proceeded to repeatedly strike, assault and batter" Plaintiff. (Compl. ¶ 24.) Plaintiff alleges that this "aforementioned violent and unlawful conduct" was intentional and done "in order to harm Plaintiff." (Compl. ¶ 26.)

These allegations, read together and assumed true for purposes of the motion, sufficiently plead conduct intended to cause injury and therefore the first prong of malice under Civil Code section 3294, subdivision (c)(1). (Compl. ¶¶ 18, 24, 26.) The absence of premeditation or a prior threat does not alter that conclusion. The absence of premeditation or a prior threat does not alter that conclusion. The Court therefore need not determine whether punitive damages are also supported by the alternative conscious-disregard definition of malice, or by oppression or fraud.

Independently, California Rules of Court, rule 3.1322(a) requires a notice seeking to strike a portion of a pleading to quote the portion in full unless an entire paragraph, cause of action, count, or defense is challenged, and requires the specifications to be numbered consecutively. Defendant specifically identifies paragraphs 22, 26, and 32 and quotes the punitive-damages prayer. Defendant's additional request to strike "[a]ny and all references and allegations of punitive damages within Plaintiff's Complaint," however, does not identify or quote any additional portions of the Complaint sought to be stricken. The specifications also are not numbered consecutively. The catch-all request therefore does not comply with rule 3.1322(a).

CONCLUSION

The motion to strike is DENIED.

Defendant to give notice